

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 21-006

**Amendment to Title 5, Chapter 1, Article B of the Chickasaw Nation Code
(Rules of Procedure)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature established certain rules, procedures and law to be applied provisions first to the Court of Indian Offenses of the Chickasaw Nation then to the Chickasaw District Court, and

WHEREAS, the Tribal Legislature desires to apply those same rules, procedures and law to be applied provisions to the Chickasaw Supreme Court.

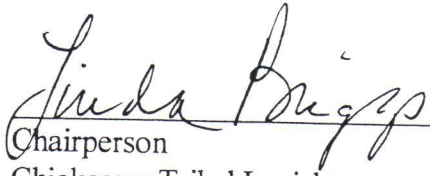
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following section to be added to Title 5, Chapter 1, Article B of the Chickasaw Nation Code:

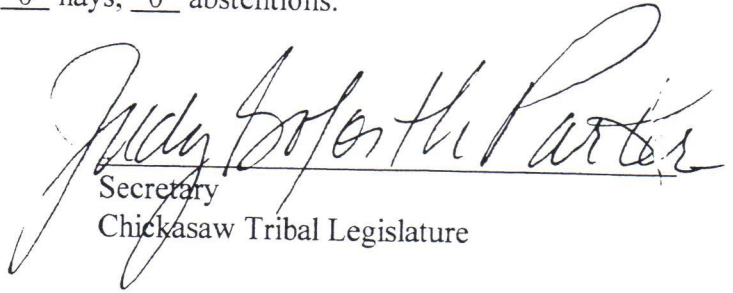
“SECTION 5-102.6

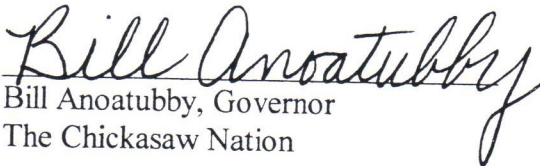
RULE 6: LAW TO BE APPLIED.

The Court shall apply the Chickasaw Nation Constitution, and the provisions of all statutory law heretofore or hereafter adopted by the Chickasaw Nation. In matters not covered by Tribal Statute, the Court shall apply traditional tribal customs and usages, which shall be called the Common Law. When in doubt as to the Tribal Common Law, the Court may request the advice of counselors and tribal elders familiar with them. In any dispute not covered by the Chickasaw Nation Constitution, Tribal Statute, or Tribal Common Law, the Court may apply any laws of the United States or any state which would be cognizable in the courts of general jurisdiction therein, and any regulation of the Department of Interior which may be of general or specific applicability. Upon this Code becoming effective, neither Part 11 of Title 25 of the Code of Federal Regulations, except those Sections thereof which are effective when the Chickasaw Nation receives certain funding from the Bureau of Indian Affairs, nor state law shall be binding upon the Court unless specifically incorporated into tribal law by Tribal Statute or by a decision of the Tribal Courts adopting some federal or state law as Tribal Common Law.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 19, 2003, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: DEC 19 2003
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution applies the rules, procedures and law to be applied provisions already established for the Court of Indian Offenses for the Chickasaw Nation and the Chickasaw District Court to the Chickasaw Supreme Court by adding a section to Title 5, Chapter 1, Article B of the Chickasaw Nation Code. The District Court participated in the drafting of this resolution.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

Presented By: Tim Colbert, Chairman
Court Development Ad Hoc Committee